



Bureau of Experts at the Council of Ministers
Official Translation Department

Law of Postal Services

Royal Decree No. M/22
October 14, 2021

Translation of Saudi Laws

NOTES:

1. This translation is provided for guidance. The governing text is the Arabic text.
2. The translation of Saudi laws takes the following into consideration:
 - Words used in the singular form include the plural and vice versa.
 - Words used in the masculine form include the feminine.
 - Words used in the present tense include the present as well as the future.
 - The word “person” or “persons” and their related pronouns (he, his, him, they, their, them, and who) refer to a natural and legal person.
3. Amendments to this Law are provided in the Appendix.

For any comments or inquiries, please contact the Official Translation Department at:

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Law of Postal Services

Chapter 1: General Provisions

Article 1

In this Law, the following words and phrases shall have the meanings assigned thereto, unless the context requires otherwise:

Law: Law of Postal Services.

Regulations: Implementing Regulations of this Law.

Statute: Statute of Communications and Information Technology Commission.

Ministry: Ministry of Communications and Information Technology.

Minister: Minister of Communications and Information Technology.

CITC: Communications and Information Technology Commission.

Board: CITC Board of Directors.

Sector: Postal services sector.

Governor: CITC governor.

Postal Services: All postal services and activities, including the following:

1. Receipt, transportation, distribution, and delivery of mail matter, including express mail.
2. Postal financial services.
3. Mailbox services.
4. Advertising mail services.
5. Prepaid cards, coupons, or vouchers services.
6. Parcel lockers.
7. Official mail service.
8. Any other service or activity that the CITC deems appropriate to be included under postal services, in agreement with the Transport General Authority in matters falling under its jurisdiction and without prejudice to the provisions of this Law.

License: A document issued by the CITC for the provision of postal services in accordance with this Law and its Regulations.

Service Provider: A person providing postal services under a license, registration, or exemption.

Registration: Registering with the CITC the data of the service provider and the type of services he provides.

Exemption: A document issued by the CITC to a service provider to provide specific postal services without a license, or to exempt such provider from one or more license terms.

User: A person who uses any postal services.



Universal Service: The provision of a basic level of postal services of an appropriate quality and affordable fee for all users.

Universal Access: Enabling all users in the Kingdom to have access to universal service.

National Operator: A provider of universal service.

Letters: Any form of written information used in correspondence and sent via postal services.

Postcards: Cards the right or top part of which is allocated for writing the address of the recipient as well as for the postage processing and stamps, and the left or lower part is allocated for information to be written by the sender.

Printed Matter: Newspapers, magazines, books, bulletins, commercial advertisements, photographs, congratulation or condolence papers or cards, and the like.

Literature for the Blind: Papers printed or written in raised letters or Braille as well as audio recordings that are mailed unsealed.

Postal Packet: A small folder that may include items, papers, or documents used in personal correspondence and packaged in a way that its contents can be viewed.

Postal Parcel: A letter, postcard, postal packet, printed matter, and literature for the blind sent by post.

Package: Any postal packet, pack, bag, box, sealed item, or the like, that contains commodities or objects not considered letters and that meets the conditions and specifications set by the CITC in agreement with the Transport General Authority.

Mail Matter: Packages, postal parcels, and the like.

Postal Remittance: The transfer of a specified amount of money to a specific person by mail.

Postal Financial Service: A postal remittance, order, check, or any other financial service.

Advertising Mail: The provision of promotional and advertising services via mail.

Official Mail: The transportation of mail matter sent by a government agency.

Mail Deposit Box: A box located inside or outside the post office for depositing outgoing postal parcels and the like.

Post Office: A place designated by a service provider for providing postal services.

Postage: The collection of due or prescribed postal fees.

Postage Meters: Machines used for the collection of due or prescribed postal fees.

Private Mailbox: A box designated for a user for depositing incoming postal parcels and the like, located inside or outside the post office.

Fee: An amount approved by the CITC for providing postal services by service providers.

Charge: An amount charged by the CITC for providing its services or issuing or renewing licenses.

Sender: A sender of mail matter through a service provider.

Recipient: A recipient of mail matter.



Article 2

This Law aims to:

1. develop and regulate the Sector in accordance with the latest methods and technologies to ensure the provision of high quality postal services at reasonable rates, meet the needs of the society, and keep pace with international standards in this field;
2. create an environment for fair and effective competition;
3. promote the effectiveness of public policies related to the Sector as well as the cooperation among public and private agencies in a manner that achieves fair and effective governance in the Sector;
4. promote the use of postal services by government agencies and individuals as well as for public services and commercial activities;
5. contribute to the growth of e-commerce;
6. enhance the market of postal services, create an environment conducive to investment in the Sector, attract leading international companies in prioritized areas of the Sector, and improve the performance of national institutions and companies;
7. protect public interest and the interests of users, and maintain the confidentiality, security, and safety of mail matter; and
8. build and develop local skills and capacities and enhance their participation in the Sector; encourage creativity, innovation, entrepreneurship, research and development in postal services; and establish new markets therefor.

Article 3

Without prejudice to the jurisdiction of other government agencies, the CITC, in order to achieve the objectives of this Law, shall:

1. set rules and criteria for postal services fees in accordance with the condition of the postal market and level of competition;
2. determine the charges for the issuance and renewal of all types of licenses as well as their annual charges, as stipulated in the Regulations and without prejudice to the provision of Article 10 of this Law;
3. propose rules, principles, and conditions for the universal service and universal access, and monitor their implementation upon approval; and
4. issue the regulatory decisions, rules, and instructions for providing postal services in the Sector, subject to the Regulations.



Chapter 2: Licensing

Article 4

A person may, pursuant to a license, registration, or exemption issued by the CITC, provide any postal service in accordance with the procedures and requirements specified in the Regulations. As for packages-related services, a license must be obtained from the Transport General Authority.

Article 5

The CITC shall grant national operator licenses and determine the license scope and conditions; the Minister shall approve said licenses or assign such task to the CITC.

Article 6

Without prejudice to any other law, a service provider may provide postal financial services upon obtaining a license from the Saudi Central Bank.

Article 7

The Regulations shall specify the following:

1. Postal services that require licensing, registration, or exemption.
2. Licenses for the provision of all types of postal services and their scope, as well as the time frame for providing such services.
3. Conditions for all types of licenses and registrations.

Article 8

A service provider may not transfer his license, assign it to another person, or transfer the ownership of a licensed facility, whether by sale, pledge, or any other means without obtaining the CITC's written approval, subject to rules and procedures specified by the Regulations.

Article 9

The CITC may request any information from a service provider and may have access to any document, invoice, or receipt related to postal services. Said service provider may not refuse, postpone, or hinder the implementation of said request in any manner. The CITC may also request any information from any distributor or sub-service provider contracted by the service provider, as well as from any person permitted by the Law to provide such services. The Regulations shall set the necessary rules and procedures.

Article 10

Charges for the issuance or renewal of all types of licenses as well as their annual charges shall be determined in agreement with the Ministry of Finance and the Non-Oil Revenues Development Center.



Chapter 3: Competition

Article 11

Without prejudice to the Competition Law, a service provider must obtain the CITC's approval prior to any acquisition or merger, within the Saudi market or abroad, that results in a dominant position in the Saudi market.

Chapter 4: Obligations and Rights of Service Providers and Users

Article 12

Mail matter shall be deemed the property of the sender prior to delivery to the recipient in accordance with the provisions of this Law and its Regulations. The recipient may request a recall of mail matter, or correction or modification of the recipient's address for a charge as prescribed in the Regulations.

Article 13

A service provider may not charge the sender or recipient any additional fees for sending or receiving mail matter other than the fees approved by the CITC.

Article 14

A service provider must obtain the CITC's written approval in accordance with the provisions of this Law and its Regulations prior to undertaking any of the following:

1. Applying its conditions and procedures for providing the postal services assigned thereto.
2. Adding other fees to postal services.
3. Concluding contracts with third parties to carry out any services he is licensed to provide.
4. Dealing with any international postal establishment, agency, or organization to make any arrangements related to the provision of any postal services he is licensed to provide.

Article 15

Without prejudice to the laws applicable in the Kingdom, it shall be prohibited to send or transport mail matter that harms the State's reputation, undermines its security, violates public policy, is inconsistent with ethics or public morals, or contains substances classified as prohibited under the laws applicable in the Kingdom. The CITC shall issue a list of prohibited items.

Article 16

A service provider shall seize mail matter and notify the competent authorities in the following cases:

1. If it contains or is suspected to contain contents that harm the State's reputation, undermine its security, violate public policy, are inconsistent with ethics or public morals, or contain or are suspected to contain substances classified as prohibited under the laws applicable in the Kingdom.
2. If an official request is submitted by any competent government agency for reasons related to security, safety, or public interest.



Article 17

A service provider must retain undelivered mail matter. The Regulations shall specify the retention periods and handling procedures.

Article 18

A user shall be entitled to track the sent mail matter within a period specified by the Regulations.

Article 19

Any person who receives or finds mail matter that does not belong to him, or receives mail matter in violation of the provisions of this Law or its Regulations shall immediately notify the service provider and return it thereto; the service provider shall recover said mail matter. The Regulations shall specify the necessary procedures.

Chapter 5: Postage

Article 20

A service provider may use any means of postage. The CITC shall set the necessary rules therefor.

Article 21

Fees for sending mail matter shall be paid by the sender, and may, in accordance with the Regulations, be paid by the recipient.

Article 22

The CITC shall, upon the approval of the President of the Council of Ministers, issue postage stamps of all categories, types, shapes, descriptions, colors, and values.

Chapter 6: Responsibility and Confidentiality

Article 23

A service provider shall be held liable for any delay, misdelivery, loss, or damage of any mail matter from the time of receipt or deposit thereof in the mail deposit box until any of the following is carried out:

1. Delivering the mail matter to the recipient's address.
2. Delivering the mail matter to the recipient by any other means approved by the CITC.
3. Depositing the mail matter in the recipient's private mailbox.
4. Returning the mail matter to the sender's address if it cannot be delivered to the recipient.
5. Taking the necessary measures if the mail matter is undeliverable, pursuant to the provisions of this Law and its Regulations.



Article 24

A service provider shall not be held liable in the following cases:

1. A sender's error or negligence.
2. Damage of mail matter due to the nature of its contents.
3. Force majeure leading to damage of mail matter, or damage of its official documents which are necessary for the identification thereof.
4. If the mail matter includes content that is prohibited under this Law or its Regulations, any other laws, or international agreements.

Article 25

Without prejudice to a service provider's responsibility, a sender shall be held liable for any damage arising from mail matter due to his non-compliance with the provisions of this Law or its Regulations.

Article 26

Without prejudice to the provisions of any other law, a service provider shall fully maintain the confidentiality of the personal data of users. Such data may not be collected, shared, or used for any purpose other than that for which it was intended; mail matter and information associated therewith shall be deemed protected.

Chapter 7: Monitoring and Inspection

Article 27

Inspectors, appointed pursuant to a decision by the Governor, shall individually or collectively detect and record violations of this Law and its Regulations. The Regulations shall determine the work rules and procedures for said inspectors.

Article 28

Officials and workers at facilities subject to inspection shall cooperate with the inspectors and provide them with the necessary information and documents. The inspectors shall present their credentials when carrying out their duties.

Article 29

The CITC may seek the assistance of competent agencies to detect and record violations or to enforce any decision issued against the violator.



Chapter 8: Violations and Penalties

Article 30

Any of the following acts shall be deemed a violation of the provisions of this Law:

1. Tampering with or damaging mailboxes or any property, means, device, equipment, or vehicle used in postal services.
2. Using, selling, purchasing, importing, or possessing postage meters without obtaining a license from the CITC.
3. Tampering with or damaging any mail matter or postal service logo; placing an official mark on any mail matter in violation of the provisions of this Law; or tampering with, altering, damaging, or removing any official mark, postage stamp, or symbol, number, or letter on any mail matter.
4. Failing to comply with or implement the CITC rules, decisions, or procedures.

Article 31

1. Without prejudice to any harsher penalty provided for in any other law, any person who violates the provisions of this Law, the Regulations, or the license shall be subject to one or more of the following penalties:
 - a) A fine not exceeding five million riyals.
 - b) Suspension of the service subject of the violation.
 - c) Suspension of the license or part thereof, or non-renewal of the license for a period not exceeding three years.
 - d) Suspension of the exemption or part thereof, or non-renewal of the exemption for a period not exceeding three years.
 - e) Revocation of the license or the exemption.
2. The Board shall issue a classification table for the violations and their corresponding penalties, provided they are within the limits of this Law, taking into account the nature and gravity of each violation, as well as the aggravating and mitigating circumstances.
3. The committee referred to in Article 33(1) of this Law may:
 - a) impose a fine on the violator for each day the violation continues after being notified of the committee's decision, provided that said fine is calculated from the date specified by such decision;
 - b) double the fine in case of a repeat violation; a violation shall be deemed repeated if committed within a year from the date the previous violation is committed.
 - c) include in the penalty decision a provision to publish the ruling at the expense of the violator in a local newspaper published in the area of his residence, or, if none is available, in the nearest area, or through any other appropriate medium, depending on the type, gravity, and effect of the violation, provided that such decision is published after it becomes final upon the lapse of the statutory period for appeal or the issuance of a final judgment thereon;
 - d) include in the penalty decision an order for the violator to rectify the violation; and



- e) include in the penalty decision an order for the violator to reimburse amounts collected as a result of the violation.

Article 32

If a dispute arises between service providers, either party may request the CITC to amicably settle the dispute as determined by the Regulations, without prejudice to any other means of settlement provided for in applicable agreements between said parties.

Article 33

1. A committee or more comprising at least three members, including a specialist in Sharia or law, shall review and decide violations of this Law, the Regulations, and the license terms, and impose the penalties stipulated in Article 31 of this Law.
2. The committee referred to in paragraph (1) of this Article shall be formed pursuant to a Board decision for a term of three years, renewable once. Said decision shall designate the committee chairman who shall be a specialist in Sharia or law. Committee decisions shall be passed by majority vote and shall be reasoned.
3. The Regulations shall determine the committee's work procedures and the remuneration of its members.
4. Decisions of the committee referred to in paragraph (1) of this Article may be appealed before the administrative court in accordance with its Law.

Chapter 9: Concluding Provisions

Article 34

If the penalties imposed or measures taken by the CITC affect the provision of postal services, the CITC shall, when necessary, make the appropriate arrangements to ensure the continuity of such services.

Article 35

The Regulations shall be issued pursuant to a decision by the Minister upon the Board's recommendation within 180 days following the date of publication of this Law.

Article 36

This Law shall be published in the Official Gazette and shall enter into force 180 days following the date of its publication.

Article 37

This Law shall supersede the Law of Postal Services issued pursuant to Royal Decree No. (M/4), dated 21/2/1406H, and shall repeal any provisions conflicting therewith.



Appendix

Amendments

July 26, 2022 (Thul-Hijjah 27, 1443H)

Council of Ministers Resolution No. 705 provides for the following:

- Replacing the phrase "Statute of Communications and Information Technology Commission" with the phrase "Statute of the Transport General Authority"; replacing the phrase "Ministry of Communications and Information Technology" with the phrase "Ministry of Transport and Logistic Services"; replacing the phrase "Minister of Communications and Information Technology" with the phrase "Minister of Transport and Logistic Services"; replacing the phrase "Communications and Information Technology Commission" with the phrase "Transport General Authority"; and replacing the word "Governor" with the word "President" wherever mentioned in this Law as well as in all relevant orders, resolutions, and documents pertaining to the postal services sector.
- Deleting the definition of "Ministry" mentioned in Article 1. Deleting the phrase "in agreement with the Transport General Authority in matters falling under its jurisdiction and without prejudice to the provisions of this Law" stated in paragraph (8) of the definition of "Postal Services" mentioned in Article 1. Deleting the phrase "in agreement with the Transport General Authority" stated in the definition of "Package" mentioned in Article 1. Deleting the phrase "As for packages-related services, a license must be obtained from the Transport General Authority" stated at the end of Article 4.